

Court No. - 21

Case :- WRIT - C No. - 26431 of 2024

Petitioner :- Barkat Frozen Foods Pvt Ltd

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mumtaz Ali,Pranav Mishra,Shad Khan

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

Lay before a Bench of which one of us (Manoj Kumar Gupta, J.) is not a member, after obtaining nomination from Hon'ble the Chief Justice, if possible on 28.08.2024 as a fresh case.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.8.2024

Ruhi H.

Court No. - 29

Case :- WRIT - C No. - 26431 of 2024

Petitioner :- Barkat Frozen Foods Pvt Ltd

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mumtaz Ali,Pranav Mishra,Shad Khan

Counsel for Respondent :- Ravi Anand Agarwal,Baleshwar Chaturvedi,C.S.C.

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. The coordinate Bench has released the instant writ petition vide order dated 13.8.2024. In view of the administrative order dated 17.8.2024 passed by Hon'ble The Chief Justice, it has been placed before us.
2. Heard Mr. Shad Khan, learned counsel for the petitioner; Ms. Uttara Bahuguna, learned Additional Chief Standing Counsel for the State-respondents and Mr. Ravi Anand Agarwal, learned counsel for the respondent-Electricity Department.
3. The present writ petition has been preferred for quashing the demand notice dated 26.02.2024 and recovery certificate dated 13.6.2024 issued by the third respondent. Alternatively, prayer is made to direct the respondent nos. 2 and 3 to reconnect the electricity connection of the petitioner within stipulated period.
4. Sri Ravi Anand Agarwal, learned counsel for the respondent-Electricity Department submits that the instant writ petition is preferred precisely on the ground that the petitioner has not been accorded MRI report. The same has been produced before the Court and a copy of the same is also provided to learned counsel for the petitioner. He submits that the petitioner got efficacious remedy to press the objection under Clause 6.5 of U.P. Electricity Supply Code 2005.
5. Be that as it may, no useful purpose would be served in keeping the writ petition pending consideration. Needless to say, it is always open for the petitioner to press the objection as per clause 6.5 of U.P. Electricity Supply Code 2005.
6. With the aforesaid observation, the writ petition is ***disposed of***.

Order Date :- 3.9.2024

A.K.Srivastava